

STATE OF NEW YORK

6634--A

Cal. No. 158

2025-2026 Regular Sessions

IN ASSEMBLY

March 6, 2025

Introduced by M. of A. KIM, DAVILA, SHIMSKY, TAPIA, GLICK, KASSAY, SANTABARBARA, REYES -- read once and referred to the Committee on Tourism, Parks, Arts and Sports Development -- advanced to a third reading, passed by Assembly and delivered to the Senate, recalled from the Senate, vote reconsidered, bill amended, ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the parks, recreation and historic preservation law, in relation to mandating the development and approval of operational safety plans

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The parks, recreation and historic preservation law is amended by adding a new section 3.16 to read as follows:

§ 3.16 Operational safety plans. 1. The office shall develop and approve operational safety plans prior to the deployment of any employee in hazardous conditions. The plan shall include, but not be limited to, a comprehensive risk assessment identifying potential hazards associated with the deployment, mitigation measures to address identified risks, detailed information on team composition including roles and responsibilities, identification of an on-site authorized person responsible for overseeing operations, a clear chain of command for decision-making during the deployment, emergency contact information for all team members, and evacuation procedures tailored to the specific deployment scenario. The commissioner or the commissioner's designee shall review and approve all operational safety plans to ensure compliance with established safety standards, verify that the employees being deployed are adequately trained for their roles, and confirm that the operation is essential under hazardous conditions.

2. For the purposes of this section:

(a) "hazardous conditions" shall mean any situation that poses a significant risk to the health and safety of personnel, including but

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD10348-03-5

1 not limited to natural disasters, extreme weather, and other emergency
2 situations.

3 (b) "Deployment" shall mean the organized assignment of employees that
4 requires coordination beyond the scope of routine job duties.

5 3. When deployment occurs in coordination with one or more other enti-
6 ties, the office shall make reasonable efforts to ensure that employees
7 are provided with the information described in subdivision one of this
8 section, to the extent practicable.

9 4. Nothing in this section shall be construed to limit or delay the
10 ability of employees to perform routine job duties or respond to immi-
11 nent threats to life or property.

12 § 2. This act shall take effect immediately.